(6)

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

CA (CAA)/31/CHE/2022

Under Sections 230 to 232 of the Companies Act, 2013
In the matter of *Scheme of Arrangement (Amalgamation)*

KOTHARI BIOTECH PRIVATE LIMITED
CIN: U01409TN1995PTC030798
Registered Office:'KothariBagh', 115,
Kothari Buildings,
M.G. Road, Nungambakkam,
Chennai - 600 0034
Tamil Nadu.

...Applicant/ Transferor Company -1

Along with

KOTHARI INTERNATIONAL TRADING PRIVATE LIMITED
CIN: U51101TN1995PTC029759
Registered office at 115, Kothari Buildings,
Mahatma Gandhi Road, Nungambakkam,
Chennai - 600 034
Tamil Nadu

... Applicant/ Transferor Company-2

Along with

PARVATHI TRADING AND FINANCE COMPANY PRIVATE LIMITED
CIN: U65191TN1989PTC017390
Registered Office: Kothari Building No. 117,
Mahatma Gandhi Road, Nungambakkam
Chennai, -600034
Tamil Nadu

... Applicant/ Transferor Company-3

Along with

NBK REAL ESTATES PRIVATE LIMITED
CIN: U70200TN2010PTC078490
Registered office at
Kothari Buildings No. 117
Mahatma Gandhi Road,
Nungambakkam,
Chennai, Tamil Nadu- 600034.

... Applicant/ Transferee Company

Order pronounced ***13th July 2022.***

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Justice (Retd) S.RAMATHILAGAM, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): Sai P John, Advocate

ORDER

Per: **Justice (Retd) S.RAMATHILAGAM, MEMBER (JUDICIAL)**

This is a joint application filed by the Applicant Companies, namely **KOTHARI BIOTECH PRIVATE LIMITED**. (hereinafter "Transferor Company-1"), **KOTHARI INTERNATIONAL TRADING PRIVATE LIMITED** (hereinafter "Transferor Company-2"), **PARVATHI TRADING AND FINANCE COMPANY PRIVATE LIMITED** (hereinafter "Transferor Company-3") and **NBK REAL ESTATES PRIVATE LIMITED** (hereinafter "Transferee Company") (together the "Applicant Companies") with its Shareholders under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in

relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies herein with its Shareholders. The said Scheme is also annexed as Page no.31 1-334 along with the typeset filed with the Application.

2. The Applicant Companies in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
TRANSFEROR COMPANY – 1	To dispense with	To dispense with	To dispense with
TRANSFEROR COMPANY – 2	To dispense with	To dispense with	To dispense with
TRANSFEROR COMPANY – 3	To dispense with	To dispense with	To dispense with
TRANSFEREE COMPANY	To dispense with	To dispense with	To dispense with

3. An affidavit in support of the above application is sworn for and behalf of the applicant Companies has been filed by Mr. R. Prakash in the capacity of Director/Authorized Representative for the Applicant Companies along with the application and it is also represented that the Registered office of the Applicant Companies are situated within the jurisdiction of Registrar of Companies, Chennai.

4. **KOTHARI BIOTECH PRIVATE LIMITED (TRANSFEROR COMPANY-1)**

(i) There are Five (5) Equity Shareholders, whose consent affidavits are placed at **Pgs 357-373** and the Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Page no. 356** of the typed set filed with the application and sought dispensation with holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at **Page No. 401** of the typed set filed with the application.

(iii) There is **NIL** Unsecured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at **Page No. 405** of the typed set filed with the application.

5. **KOTHARI INTERNATIONAL TRADING PRIVATE LIMITED (TRANSFEROR COMPANY-2)**

(i) There are Three (3) Equity Shareholders, whose consent affidavits are placed at **Page No.375-384** of the typed set filed with the application and the Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Page No.374** of the typed set filed with the application and sought dispensation with holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is annexed at **Page No. 402** of the typed set filed along with the Application.

(iii) There is **NIL** Unsecured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at **Page No. 406** of the typed set filed with the application.

6. PARVATHI TRADING AND FINANCE COMPANY PRIVATE LIMITED (TRANSFEROR COMPANY-3)

(i) There are **two (2)** Equity Shareholders, whose consent affidavits are placed at **Page No. 386-391** of the typed set filed with the application and the Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Page No. 385** of the typed set filed with the application and sought dispensation with holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is annexed at **Page No. 403** of the typed set filed along with the Application.

(iii) There are **One (1)** Unsecured Creditors and certifying the list of Unsecured Creditors is annexed at **Page No. 407** and the consent Affidavits given by unsecured creditors constituting 100% is placed at **Page No. 408-410** of the typed set filed along with the Application and sought dispensation with holding meeting.

7. NBK REAL ESTATES PRIVATE LIMITED (TRANSFEREE COMPANY)

(i) There are **two (2)** Equity Shareholders, whose consent affidavits are placed at **Page No.393-400** and the Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Page No. 392** of the typed set filed with the application and sought dispensation with holding of meeting.

(ii) There are **NIL** Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at **Page No.404** of the typed set filed along with the Application.

(iii) There are **One (1)** Unsecured Creditors and certifying the list of Unsecured Creditors is annexed at **Page No. 411** and the consent Affidavits given by unsecured creditors constituting 100% is placed at **Page No. 412-414** of the typed set filed along with the Application and sought dispensation with holding meeting.

8. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

9. From the certificate of incorporation filed, it is evident that

(i) The Transferor Company-1 is a Private limited company incorporated under the provisions of Companies Act, 1956 on 07.07.2004 with CIN: U01409TN1995PTC030798. The Authorized Share Capital of the Transferor Company-1 is ₹10,00,00,000 /-

(Rupees Ten Crore Only) consisting of 1,00,00,000 Equity Shares of INR 10/- each. The Issued, Subscribed and Paid-up Capital is ₹4,56,00,700/- (Rupees Four Crore Fifty Six Thousand and Seven Hundred Only) consisting of 45,60,070 Equity Shares of INR 10/- each. The Registered office address of the Transferor Company –1 is situated at No 'KOTHARI BAGH'115. Kothari buildings, M.G. Road, Nungambakkam, Chennai, Tamil Nadu-600 034.

(ii) The Transferor Company-2 is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 05/01/1995 with CIN: U51101TN1995PTC029759. The Authorized Share Capital is ₹1,50,00,000 (Rupees One Crore Fifty Lakh Only) consisting of 15,00,000 Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor Company-2 is ₹1,00,00,000 (Rupees one Crore Only) 10,00,000 Equity Shares of Rs.10/- each. The Registered office address of the Transferor Company – 2 is situated at 'KOTHARI BAGH' 115. Kothari buildings, M.G. Road, Nungambakkam, Chennai, Tamil Nadu-600 034.

(iii) The Transferor Company-3 is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 08.05.1989 with CIN: U65191TN1989PTC017390. The Authorized

Share Capital is ₹25,00,000 (Rupees Twenty Five Lakh Only) 2,1 0,000 Equity Shares of Rs.10 each and 40,000 preference shares of Rs.10 each. The Issued, Subscribed and Paid-up Capital of the Transferor Company-3 is ₹16,83,480 (Rupees Sixteen Lakh Eighty Three Thousand Four Hundred and Eighty Only) consisting of 1,64,348 Equity Shares of Rs.10/- each. The Registered office address of the Transferor Company – 3 is situated at Kothari Buildings No. 117 Mahatma Gandhi Road, Nungambakkam, Chennai, Tamil Nadu-600034.

(iv) From the certificate of incorporation filed, it is evident that the Transferee Company is a Private Limited company incorporated under the provisions of the Companies Act, 1956 on 20.12.2010. The Authorized Share Capital is ₹10,00,000 (Rupees Ten lakh Only) consisting of1,00,000 Equity shares of Rs. 10/- each . The Issued, Subscribed and Paid-up Capital of the Transferee Company is ₹10,00,000/- (Rupees Ten Lakhs only) consisting of 1,00,000 equity Shares of Rs.10/- each. The Registered office address of the Transferee Company is situated at Kothari Buildings No. 117 Mahatma Gandhi Road, Nungambakkam, Chennai, Tamil Nadu- 600034.

10. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Financial Statements for the year ended 31.03.2021 and Provisional Financial Statements as on 31.12.2021.

11. The Board of Directors of the Applicant Companies has unanimously approved the proposed Scheme as contemplated above and copies of the resolutions passed thereon have been placed on record by the Applicant Companies.

12. The Appointed date as specified in the Scheme shall be 01.04.2021.

13. The Statutory Auditors of the Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.

14. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions : -

A. IN RELATION TO THE TRANSFEROR COMPANY – 1:

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company-1 that there are Five (5) Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company-1 that there is NIL Secured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company-1 that there is NIL unsecured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

B. IN RELATION TO THE TRANSFEROR COMPANY-2

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company-2 that there are three (3) Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is ***dispensed with.***

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company-2 that there is NIL Secured Creditor in the Company, hence the necessity of convening holding and conducting a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company-2 that there is NIL unsecured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

C. IN RELATION TO THE TRANSFEROR COMPANY-3

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company-3 that there are two (2) Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is ***dispensed with.***

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company-3 that there is NIL Secured Creditor in the Company, hence the necessity of convening holding and conducting a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company-3 that there are One (1) unsecured Creditor in the Company whose consents by way of Affidavit have been obtained from all and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is ***dispensed with.***

D. IN RELATION TO THE TRANSFEREE COMPANY:

(i) **With respect to the Equity shareholders:**

Since it is represented by the TRANSFEREE Company that there are two (2) Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is ***dispensed with.***

(ii) **With respect to the Secured Creditors:**

Since it is represented by the TRANSFEREE Company that there is NIL Secured Creditor in the Company, hence the necessity of convening holding and conducting a meeting *does not arise*.

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the TRANSFEREE Company that there are One (1) Unsecured Creditors in the company and the consent Affidavits obtained from unsecured creditors having

been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

14. Accordingly, the Application stands **allowed** and the Applicant Companies are directed to file the Application for the Second Motion within a period of fourteen (14) days from the date of receipt of this Order.

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

Justice (Retd) S.RAMATHILAGAM,
MEMBER (JUDICIAL)

Vinita Varshini